

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
JILYLE JENKINS AND SALIYAR TYLER-BAE,**SUMMONS**

Plaintiff(s),

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
BRIGGITT MARTINEZ, SHIELD NO. 21747, NYPD
POLICE OFFICER ERIK MONTALBANO, SHIELD NO.
26485, and NYPD POLICE OFFICERS and SERGEANTS
JOHN/JANE DOES NUMBERS ONE THROUGH TEN,Plaintiff designates New York
County as the place of trial.Defendants.
----- X**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 3, 2022

Yours, etc.

Lara Belkin

Lara Belkin, Esq.

Shulman & Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

OFFICER BRIGGITT MARTINEZ, Shield No. 21747, 25th Precinct, 120 E 119th St, New
York, NY 10035

OFFICER ERIK MONTALBANO, Shield No. 26485, 25th Precinct, 120 E 119th St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JILYLE JENKINS AND SALIYAR TYLER-BAE,

Plaintiff(s),

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE OFFICER
BRIGGITT MARTINEZ, SHIELD NO. 21747, NYPD
POLICE OFFICER ERIK MONTALBANO, SHIELD NO.
26485, and NYPD POLICE OFFICERS and SERGEANTS
JOHN/JANE DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs JILYLE JENKINS and SALIYAR TYLER-BAE, by their attorneys, Shulman and Hill, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 17, 2022, at approximately 12:00 p.m., Plaintiff Jilyle Jenkins and Plaintiff Saliyar Tyler-Bae, while lawfully in vicinity of the southwest corner of 3rd Avenue and East 126th Street, New York, were subjected to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. Plaintiffs were deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Jilyle Jenkins is a resident of the state of New York.
3. Plaintiff Saliyar Tyler-Bae is a resident of the state of New York.

4. NYPD Police Officer Briggitt Martinez, Shield No. 21747, is and was at all times relevant herein an Officer with the New York City Police Department.
5. NYPD Police Officer Briggitt Martinez, Shield No. 21747, is being sued in their individual and official capacity.
6. Currently and at all times relevant herein, NYPD Police Officer Briggitt Martinez, Shield No. 21747, was assigned to the 25th Police Precinct of the NYPD.
7. NYPD Police Officer Erik Montalbano, Shield No. 26485, is and was at all times relevant herein an Officer with the New York City Police Department.
8. NYPD Police Officer Erik Montalbano, Shield No. 26485, is being sued in their individual and official capacity.
9. Currently and at all times relevant herein, NYPD Police Officer Erik Montalbano, Shield No. 26485, was assigned to the 25th Police Precinct of the NYPD.
10. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
11. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiffs in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. In accordance with New York State law and General Municipal Law Section 50, Plaintiff Jenkins testified at a hearing held pursuant to General Municipal Law Section 50-H on August 8, 2022, and Plaintiff Tyler-Bae testified on September 12, 2022.
16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.
17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
18. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On February 17, 2022, at approximately 12:00 p.m., Plaintiffs were present in vicinity of the southwest corner of 3rd Avenue and East 126th Street, County and State of New York, when the defendant Police Officers approached, questioned, detained and arrested Plaintiffs without legal justification.

Plaintiff Jilyle Jenkins

20. Plaintiff Jenkins was leaving the New York State Welfare building, where he was applying for Medicaid. He had asked Plaintiff Tyler-Bae to pick him up in his car, and Plaintiff Tyler-Bae was lawfully parked nearby waiting for him. Plaintiff Jenkins got into the parked car and was sitting in the passenger seat of the vehicle when it was unlawfully stopped by defendant officers as Plaintiff Tyler-Bae began to pull away.
21. Two marked police vans, using emergency lights and sirens and a loud-speaker, stopped the vehicle absent legal justification. Plaintiff Tyler-Bae complied and immediately pulled over and stopped the vehicle. Approximately eight Defendant Officers in uniform approached the Plaintiffs' vehicle with their hands on their weapons.
22. A female Defendant Officer approached the passenger window and reached her hands into the car and immediately began grabbing Plaintiff Jenkins, patting the area around his waist and reaching over him in an attempt to reach the ignition of the car to shut it off. As the female Defendant Officer was reaching over Plaintiff Jenkins she swiped his genitals—essentially conducting an illegal pat down search.
23. The Defendant Officers continued to grab at Plaintiff Jenkins through the window, then opened the passenger car door and dragged him out of the car, causing his phone to fall on the ground and shatter in the process.
24. The Defendant Officers used offensive and explicit language towards Plaintiff Jenkins.

25. Defendant NYPD officers unlawfully tightly handcuffed, searched and arrested Plaintiff Jenkins without probable cause or reasonable suspicion.
26. When Plaintiff Jenkins asked defendant NYPD officers to explain why he was being arrested absent legal justification, they refused to give him an explanation.
27. Plaintiff was taken to the 25th Precinct, where he was placed in a holding cell, searched, fingerprinted and photographed.
28. Defendant Officers then interrogated Plaintiff Jenkins about guns and gangs without in the absence of legal counsel and without advising him of his Miranda rights.
29. Plaintiff Jenkins was released after approximately four hours with a Desk Appearance Ticket for Disorderly Conduct.
30. Plaintiff Jenkins had to miss a day of work and pay to attend his court appearance.
31. Upon information and belief, when Plaintiff Jenkins went to court for the summons, he was told that it had been dismissed.
32. In the interim, defendant officers seized Plaintiff Jenkins' automobile and cellphone, absent any legal justification for doing so.
33. When Plaintiff Jenkins went to retrieve these items, he found that defendant officers had caused significant damage to the automobile, including trim along the underside of his vehicle, evidently while searching it. No guns, drugs or other contraband was recovered during the illegal search of Plaintiff Jenkins' vehicle.
34. After being released, Plaintiff Jenkins had pain in his wrists and shoulder, due to the conduct of Defendant Officers effecting his arrest. Plaintiff Jenkins had bruises on his wrists for weeks following the incident.
35. As of the time of his 50H hearing, approximately 6 months after the incident, Plaintiff Jenkins was still suffering from pain in his shoulder and could only lay on one side, could not extend his arm, play with his children or complete other small tasks such as tying his shoes. His shoulder still gets numb from his injuries, impacting his ability to work.
36. At no time relevant herein did Plaintiff Jenkins commit a crime or violate the law in any way, nor did the police officers have an objective credible reason to accuse Plaintiff of committing a crime or violating the law in any way.
37. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

38. Nevertheless, Plaintiff Jenkins was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched.
39. Some of the police officer defendants observed the violation of Plaintiff Jenkins rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Jenkins.
40. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Jenkins to sustain physical, psychological and emotional trauma.

Plaintiff Saliyar Tyler-Bae

41. Plaintiff Tyler-Bae was sitting in the driver's seat of the legally parked vehicle waiting to pick up Plaintiff Jenkins, the father of her children.
42. Plaintiff Tyler-Bae was able to see defendant officers watching Plaintiff Jenkins as he walked down 125th Street and got into the vehicle.
43. As Plaintiff Tyler-Bae pulled out of the parking space and onto the street, using her signal and complying with all vehicle and traffic laws, defendant officers, in a marked police car, immediately stopped Tyler-Bae's vehicle,- using lights, sirens and a loud speaker, without any legal justification.
44. Two male officers approached Plaintiff Tyler-Bae's driver's side window, which was rolled down. When she asked Defendant Officers why she was being pulled over, they ignored her question and demanded that she roll down the rear windows of the vehicle.
45. Plaintiff Tyler-Bae asked two more times why she was being pulled over and Defendant officers continued to ignore her question and demand she roll down the rear windows.
46. Due to the hostility and aggression with which Defendant officers treated her, and fearing for her safety, Plaintiff Tyler-Bae began recording the interaction on her cell phone.
47. Defendant officers then threatened to pull her out of the car. Plaintiff Tyler-Bae opened the driver's side door, and Defendant officers grabbed her arm and pulled her out.
48. Plaintiff Tyler-Bae asked Defendant officers multiple times why she was being arrested, but they refused to give her any explanation.
49. As Defendant officers yanked Plaintiff Tyler-Bae out of her car, her cell phone was knocked out of her hand and on the floor. Plaintiff Tyler-Bae's video ended prior to her being handcuffed.
50. There were now approximately 15 Defendant officers on the scene.

51. Defendant Officers used offensive and explicit language towards Plaintiff Tyler-Bae, calling her names and threatening to cuff Plaintiff Tyler-Bae if she did not stop asking why she was being detained. Defendant officer then began aggressively grabbing her arms.
52. One Defendant officer threatened to tase Plaintiff Tyler-Bae if she did not comply with being handcuffed. Defendant NYPD officers then pinned Plaintiff Tyler-Bae's hands behind her back, handcuffed her with metal cuffs, searched her person and arrested her without any legal justification.
53. In the course of arresting Plaintiff Tyler-Bae, Defendant officers used excessive force, causing scratches and lacerations to her neck and back area and applied the handcuffs so tightly that they caused abrasions to her wrists. There were at one point 5 officers pushing her up against the car.
54. Plaintiff Tyler-Bae was taken to the 25th Precinct, where she was placed in a holding cell, finger-printed and photographed.
55. Plaintiff Tyler-Bae was released after approximately 3 hours with a Desk Appearance Ticket.
56. In the interim, defendant officers transmitted false statements to the prosecuting authority, the New York County District Attorney's Office.
57. Plaintiff Tyler-Bae appeared in court three times.
58. Plaintiff Tyler-Bae's criminal case was dismissed and sealed on June 24, 2022.
59. Because she was working at a non-profit organization dealing with victims of domestic violence, she was questioned by management regarding the criminal charges pending against her. Her criminal defense lawyer told her not to discuss the details of the case with anyone, and she was ultimately fired from her job, in part due to the false charges in this case.
60. Plaintiff Tyler-Bae suffered severe emotional distress in the aftermath of her violent arrest by Defendant officers in this case. Having previously worked with NYPD officers on a regular basis as a part of her job, she was horrified by their treatment of her in this incident—profiling Plaintiff Jenkins, pulling the car over without legal justification, yanking her out of the car, refusing to tell her why she was being detained and arrested, and the aggressive way multiple male officers grabbed her, pinned her arms, and handcuffed her.
61. As of the time of her 50H hearing, approximately 7 months after the incident, Plaintiff Tyler-Bae was still suffering from backaches which worsened to extreme pain when she had to stand for long periods of time.
62. This was Plaintiff Tyler-Bae's first and only ever arrest.

63. At no time relevant herein did Plaintiff Tyler-Bae commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse her of committing a crime or violating the law in any way.
64. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff Tyler-Bae's possession, custody, or control.
65. Nevertheless, Plaintiff Tyler-Bae was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched.
66. Some of the police officer defendants observed the violation of Plaintiff Tyler-Bae's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
67. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Tyler-Bae to sustain physical, psychological and emotional trauma, and caused her to lose her job.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

68. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
69. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.
70. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
71. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:

Unlawful Seizure and Deprivation of Liberty

74. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
75. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
76. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

77. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
78. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
79. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.
80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
82. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

83. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
84. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized

community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

85. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
86. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
89. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

90. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
91. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
92. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

93. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
94. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

95. Defendants failed to intervene to prevent the unlawful conduct described herein.
96. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, they was put in fear of their safety, and they was humiliated and subject to other physical constraints.
97. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
100. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

101. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
102. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.
103. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.
104. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.
105. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
106. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

109. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

110. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

111. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

112. Defendants commenced and continued a criminal proceeding against Plaintiff.

113. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges.

114. The criminal proceedings terminated in Plaintiff's favor.

NINTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

115. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

116. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

117. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

118. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 30 hours in total.

119. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights**

120. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

121. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

122. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

123. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

124. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of his rights.

125. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights**

126. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing his detention for approximately 4 hours.
132. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
134. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
137. Defendant Officers had a duty to protect Plaintiffs from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
138. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

141. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

142. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

143. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

144. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

145. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

146. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs JILYLE JENKINS and SALIYAR TYLER-BAE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein,

including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
November 3, 2022

By: Lara Belkin
Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

OFFICER BRIGGITT MARTINEZ, Shield No. 21747, 25th Precinct, 120 E 119th St, New York, NY 10035

OFFICER ERIK MONTALBANO, Shield No. 26485, 25th Precinct, 120 E 119th St, New York, NY 10035

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
November 3, 2022

Lara Belkin
LARA BELKIN